

Hari Om Shukla v. State of U.P. — s.135 FIR not quashed

Allahabad High Court · Division Bench · 25 July 2014 · Criminal Misc. Writ Petition No. 12546 of 2014 · **s.135 FIR not quashed; CrPC 41/41-A on arrest; compounding under Supply Code**

HEADNOTE

A criminal writ to quash an FIR under Section 135 of the Electricity Act, 2003 was refused where the FIR disclosed a cognizable offence. Any arrest for an offence not entailing more than seven years must follow Section 41(1)(b) read with Section 41-A Cr.P.C. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Hari Om Shukla approached the Allahabad High Court to quash FIR dated 31 May 2014, registered as Case Crime No. 138 of 2014 under Section 135 of the Electricity Act, 2003 at Police Station Shivli, District Kanpur Dehat. He had not been arrested. Counsel argued that the alleged offence could not attract a sentence exceeding seven years, so arrest should not be mechanical, and that the offence was compoundable under the electricity law.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR quashing, arrest, compounding

HOLDING

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence is not to be quashed. Arrest, if effectuated for an offence not entailing a sentence of more than seven years, must comply with Section 41(1)(b) read with Section 41-A Cr.P.C. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy

A criminal writ to quash an FIR under Section 135 of the Electricity Act, 2003 was refused where the FIR disclosed a cognizable offence. Any arrest for an offence not entailing more than seven years must follow Section 41(1)(b) read with Section 41-A Cr.P.C.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — GRANT OF COMPOUNDING UNDER THE ELECTRICITY SUPPLY CODE, 2005

Pointed to the Code remedy if the offence is compoundable; no decision on entitlement. ¶ 1